

HOUSE No. 4338

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1162) of William C. Galvin relative to reductions of insurance payments for certain medical procedures, reports recommending that the accompanying bill (House, No. 4338) ought to pass.

For the committee,

JAMES M. MURPHY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reduce inequities in access to medical procedures.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 16 of chapter 176O of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out subsection (c) and inserting in place thereof the
3 following subsections:

4 (c) Carriers are prohibited from reducing the payment of a negotiated rate for evaluation
5 and management or procedural services under a participating provider agreement that are
6 furnished by a participating provider and that are otherwise covered services solely because the
7 provider also billed other health care services, including but not limited to minor surgery, on the
8 same day as the evaluation and management or procedural services. Any provision of a provider
9 agreement that allows for a reduction in reimbursement as prohibited by this subsection shall be
10 void.

11 (d) With respect to an insured enrolled in a health benefit plan under which the carrier or
12 utilization review organization only provides administrative services, the obligations of a carrier

- 13 or utilization review organization created by this section and related to payment shall be limited
- 14 to recommending to the third party payor that coverage should be authorized.